

## CHAPTER - 1

# NATURE OF TORTS

The word 'Tort' has been derived from the Latin term 'tortum' which means 'to twist'. Thus it implies a conduct which is not lawful but rather it is twisted, crooked or unlawful.

The person who commits the tort is called 'tort person' and his misdoing is a 'tortious act'.

The 'Law of Torts' owes its origin to the Common Law of England. It is well developed in the UK, USA and other advanced Countries. In India, Law of Torts is non codified, like other branches of law eg: Indian Contract Act, 1872 and Indian Penal Code, 1860. It is still in the process of development. A tort can take place either by commission of an act or by omission of an act.

### DEFINITION OF TORT:

According to Prof. Winfield, Tortious Liability arises from breach of a duty primarily fixed by law; this duty is towards persons generally and its breach is redressable by an action for unliquidated damages.

Sir John Salmond defined Tort as a civil wrong for which the remedy is common law action for unliquidated damages and which is not exclusively the breach of contract or the breach of trust or other merely equitable obligation.

Unliquidated damages: An amount owed to a plaintiff in a lawsuit by the defendant that cannot be determined by operation of law, such as the value of pain and suffering in a tort case.

**Section 2 of the Limitation Act, 1963**, defines tort as a civil wrong which is not exclusively a breach of contract or breach of trust.

Constituents of Tort:

There must be a wrongful act or omission on the part of defendant

Such act or omission should result in legal damage

Some legal remedy in the form of an action for damages must be available

### PURPOSE OF LAW OF TORT

The law of Tort is based upon the concept of Equity and Justice as well as the doctrine of perfect rights. A right for which there is no remedy which has been provided is considered as no right. i.e., wherever there is a right created it is the duty of the state to provide an equitable remedy in case of violation of such rights.

The basic purpose of law is to do a balancing between the rights of various individuals in the society. This balancing is what has been termed as social engineering by Roscoe Pound and William L. Prosser. The act of social engineering is a dynamic process and in the specific circumstances the court has to draw a balance between the rights involved.

### Law of Tort or Law of Torts?

Law is reflected of entire body of law. **Winfield** said law of tort and **Salmond** said law of torts. Tort is singular and torts is plural. So, Winfield might have thought that there is a general principle of law according to which liability of tort will be decided. Therefore, Winfield theory is called **unity theory**.

**Salmond** says there are certain specific torts which are like pigeon holes and if your case falls in any one of them then it will be a case of tort liability and it will have a specific name. These pigeon holes are like nuisance, negligence, strict liability etc. This theory is called **pigeon hole theory**.

### Case – Ryland v/s Fletcher

Court was asked to give relief for nuisance but they were not given. Then they asked relief for negligence but it was not given. So here court propounded new tort i.e. strict liability, that means we made one more pigeon hole and extended **Salmond's** view there propounding of new liability principles supports **Salmond's** pigeon hole theory that if case falls in pigeon hole then only there will be liability. It supports **Winfield** as well it complies with general principle of liability by propounding a new tort.

### **DISTINCTION BETWEEN TORT FROM CRIME**

| <b>TORT</b>                                                                                | <b>CRIME</b>                                                                          |
|--------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------|
| Less serious wrongs are considered as private wrongs and have been labelled as civil wrong | More serious wrongs have been considered to be public wrongs and are known as crimes. |
| The suit is filed by the injured person himself.                                           | The case is brought by the state.                                                     |
| Compromise is always possible.                                                             | Except in certain cases, compromise is not possible.                                  |
| The wrongdoers pays compensation to the injured party.                                     | The wrongdoer is punished.                                                            |
| A person who commits Tort is a 'tortfeasor'                                                | A person who commits Crime is a 'Criminal' or 'Offender'                              |
| The remedy of tort is unliquidated damages or other equitable relief to the injured        | The remedy is to punish the offender                                                  |

### **DISTINCTION BETWEEN TORT FROM CONTRACT**

| <b>CONTRACT</b>                                                        | <b>TORT</b>                                                                                                    |
|------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------|
| It results from breach of a duty undertaken by the parties themselves. | It occurs from the breach of such duties which are not undertaken by the parties but which are imposed by law. |
| In contract, each party owes duty to the other.                        | Duties imposed by law of torts are not towards any specific individual but towards the world at large.         |
| Damage of contract is liquidated.                                      | Damage of tort is unliquidated.                                                                                |
| It provides limited remedy                                             | It provides unlimited remedy.                                                                                  |

### **DISTINCTION BETWEEN TORT FROM BREACH OF TRUST**

| <b>TORT</b>                                          | <b>BREACH OF TRUST</b>                           |
|------------------------------------------------------|--------------------------------------------------|
| (i) Damage of tort is unliquidated.                  | (i) Damage of breach of trust is liquidated.     |
| (ii) Law of tort was part of common law.             | (ii) Law of trust was part of Court of Chancery. |
| (iii) Tort is partly related to the law of property. | (iii) Trust is a branch of law of property.      |

### **DISTINCTION BETWEEN PERFECT AND IMPERFECT RIGHTS**

A perfect right means a right that can be legally enforced and which has a correlative duty attached to it. According to Salmond, "A perfect right is one which corresponds to the perfect duty. A perfect duty is one which is not merely recognized by law but also enforced by law." Generally, when the law recognizes a right, it prescribes a remedy also; and when the right is violated, it enforces it through the physical force of the State. Examples: All fundamental rights, viz. the right to equality, right to religion, etc. are perfect rights as these are enforceable by law.

An imperfect right is that right which although recognized by law is not enforceable by it. Imperfect rights remain valid for all purposes except that of enforcement. Example: the claims barred by time. In such cases, the limitation does not extinguish the right but bars the remedy only. The claim is valid in other respects, but it cannot be enforced. Such cases may be considered as an exception to the doctrine Ubi jus ibi remedium.



| Perfect Rights                                                                                                                                          | Imperfect Rights                                                                                                                                                                                         |
|---------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| According to Salmond, "A perfect right is one which corresponds to the perfect duty."                                                                   | According to Salmond an imperfect right is that right which although recognized by law is not enforceable by it due to defects in form or some other defects.                                            |
| A perfect right is an enforceable law.                                                                                                                  | An imperfect right is not enforceable by law.                                                                                                                                                            |
| All perfect rights are recognized by law                                                                                                                | All imperfect rights are not recognized by law.                                                                                                                                                          |
| A perfect right possesses both the remedy and the right                                                                                                 | There is a limitation on remedy and not on right.                                                                                                                                                        |
| Perfect duty is associated with the perfect right. A perfect duty is one which a person not merely ought to perform but is justly compelled to perform. | No duty is associated with an imperfect right. The imperfect duty is a duty of such a nature that it is not fit for enforcement, but ought properly to be left to the free will of him whose duty it is. |
| Perfect right and duty pertain to the sphere of justice                                                                                                 | The imperfect right and duties pertain to that of kindness.                                                                                                                                              |
| Paying one's debts is a perfect duty. Conversely, it is a perfect right conferred to the creditor.                                                      | The duty to give alms to poor people is an imperfect duty but not enforceable.                                                                                                                           |
| Example: A promissory note duly executed is a perfect right in favour of the creditor and a perfect duty of the debtor.                                 | A time-barred promissory note is not enforceable by law. It is an imperfect right of the creditor and the imperfect duty of the debtor.                                                                  |

### RIGHT IN REM

Anyone signing a contract possesses rights in Rem or intangible rights. They have this right against the whole globe. Basically, it prevents a person's stuff from being stolen by anyone in the universe.

As a result, we refer to this type of right as a negative one. For the simple reason that it provides everyone with the right to be alone. This means that no one else has the right to meddle with the right(s) of a person. These are rights residing in individuals and can be availed against the other parties.

### RIGHT IN PERSONAM

Right in Personam is the polar opposite of Right in Rem. Right in Personam confers legal rights on a single person or party to a contract. It usually corresponds to a responsibility placed on the mentioned person or group.

### DISTINCTION BETWEEN RIGHT IN REM AND RIGHT IN PERSONAM

| Rights in Rem                                                          | Rights in Personam                                                                                     |
|------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------|
| <b>Rights in Rem:</b> These are real rights.                           | Whereas after execution of sale deed the right will be right in rem available against the whole world. |
| <b>Rights in Rem:</b> No relationship is established.                  | <b>Rights in Personam:</b> These are personal rights.                                                  |
| <b>Rights in Rem:</b> These rights are available against common/globe. | <b>Rights in Personam:</b> Relationship is established.                                                |
| <b>Rights in Rem:</b> These are negative rights.                       | <b>Rights in Personam:</b> These rights are available against a particular party.                      |
| One right is the subject matter of another right.                      | <b>Rights in Personam:</b> These are positive rights.                                                  |
| <b>Rights in Rem:</b> This is the subject matter of right in personam. | <b>Rights in Personam:</b> These are special rights.                                                   |
| <b>Rights in Rem:</b> These are general rights.                        | <b>Rights in Personam:</b> This is the subject matter of right in rem.                                 |

### Example

#### Examples of Right in Rem

1. X purchased a car. X has the Right in Rem with respect to the car. No party can disturb the Right in Rem of X.
2. Y gifted a landed (landed means owning much land, especially through inheritance) property to his son Z. Z has Right in Rem with respect to the gifted property.

### Example

#### Examples of Right in Personam

1. A sold his house to B for Rs. 25 lakhs. Hence, A's right to receive the same amount from B is A's personal right and no other party is involved. Hence this is Right in Personam.
2. B rented his farmhouse to C for a monthly rent of Rs. 5000. Hence, B's right to collect rent from C is his personal right, and no other party is involved. Hence, this is Right in Personam.
3. Right of Shyam after he signs a contract with Ram for a piece of land purchase is right in personam.

### Rule of Malice

Malice means mental element. In civil liability, mental element is not relevant but there may be some tort where it may be relevant like assault, battery, false imprisonment, malicious prosecution, conspiracy etc. These are tort wrongs, where mental element is relevant.

**Malice in Law-** Malice in law simply means a willful act done without just cause or excuse. It does not connote any improper motive for doing the act.

**Malice in Tort or Evil Motive-** It means the motive for doing a wrongful act. When the defendant does an act with a feeling of spite, vengeance or ill-will, the act is said to be done maliciously.

The case of **South Wales Miners Federation v/s Glamorgan Coal Company** is an illustration to explain the first aspect of the rule, i.e., that a wrongful act is not converted into a lawful act by a good motive.

**Bradford Corporation v/s Pickels** is an authority which explains the other aspect, i.e., a lawful act does not become unlawful merely because of an evil motive.

### Exceptions to the Rule

**Injuria sine damno-** It means violation of a legal right without causing any harm, loss or damage to the plaintiff.

**Ashby v/s White-** In this case a person who was a voter was not allowed to vote for a candidate and that was not allowed to vote for a candidate and that is how his legal right was infringed but he did not suffer any damage because the candidate for whom he wanted to vote won the election. Here it was a case of injuria sine damnum and therefore actionable.

**There was violation of legal right.**

**Damnum sine injuria-** It means damage which is not coupled with an unauthorized interference with the plaintiff's lawful right

**Gloucester Grammar School Case-** In this case a teacher opens a school in front of an older school. He was a good teacher. So everybody went there. The older school went in court to claim compensation because for tort wrong there must be a wrongful act or omission and here there is no wrongful act as everybody is entitled to carry on business. As far as legal damage is concerned the teacher has not violated

the legal right of older school. Therefore, no remedy can be claimed. Here *damnum sine injuria* applies i.e. damage without violation of legal right, unless there is violation of legal right damage cannot be claimed in torts.

- *Injuria sine damnum* is always actionable, whereas *Damnum sine injuria* is never actionable